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# Unraveling the Mary Ellen Legend: Origins of the “Cruelty” Movement

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For more than a century the literature of social welfare has accepted the mythical and simplistic conviction that a solitary instance of child abuse led directly to a child's rescue as “a member of the animal kingdom,” followed immediately by a spontaneous and worldwide movement to protect children from harsh treatment—“cruelty”—at the hands of their parents. From primary sources, I correct this myth and document a fortuitous coming together of a constellation of related factors that stimulated public receptivity to a view of child abuse and neglect as a social problem that could no longer be ignored.

An extraordinary aspect of the “discovery” of child abuse and organized attention to it in the late nineteenth century is the persistence of the legend of “Mary Ellen” and the credence given it by the belief in chance happenings as the originator of large social movements.

Despite the fact that for hundreds of years history recorded instances of cruelty to children by parents and other caretakers, few cases of child abuse were acted on in the courts before the nineteenth century. The general assumption of the courts was that parents could be expected to act “reasonably.” Protecting children from physical mistreatment posed a particularly difficult problem, given the strength of the presumption that parents should be free to choose forms of punishment and to determine their severity.

The scarcity of reported early criminal cases of child abuse attests to the paucity of protection provided for cruelly treated children. Eventually, in 1874, the highly publicized case of Mary Ellen in New

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York City captured public attention and spawned a display of moral indignation that could not be ignored. Although recorded with some variations, the essence of the legend is as follows.<sup>1</sup>

## The Legend

While on her "errands of mercy," Etta Angell Wheeler, variously termed a mission worker, a tenement visitor, and a social worker, was told of a child named Mary Ellen who frequently was left locked alone and at other times was cruelly beaten and mistreated by her caretakers, Mary and Francis Connolly. The ill and dying woman who gave the information to Wheeler had repeatedly heard through the thin walls of the tenement in which she lived the desperate cries of the child and the sounds of beatings and verbal abuse. Wheeler tried to gain entrance to the apartment of the Connollys and was repulsed by a powerfully built, loutish man who met her inquiries with abusive language and threats of violence. Eventually she tried again and the door was opened by Mary Connolly, who asked sharply what she wanted. Although her visit was very short, Wheeler was able to see Mary Ellen, a pale, thin child the size of a 5 year old, although it was later established that she was 9. It was a bitterly cold December day, yet the barefoot child wore only a thin tattered dress over one other ragged garment. A whip lay on a table, and the child's arms and legs bore many marks of its use. The saddest aspect, Wheeler reported, was written on the child's face, the face of an unloved child who knew only misery and the fearsome side of life.

For several months Wheeler tried to find some means to have the child removed from the clutches of foster parents, who, as the story was told, beat her with a whip of twisted leather thongs until her diminutive body was a mass of cuts and bruises. Wheeler, referred to as "a sweet-faced missionary," sought the help of the powerful—charitable organizations and law enforcement officers. She met rebuff at every turn. She was told that it was dangerous to interfere between parent and child and to leave it alone. She was told to bring the child to them legally and provide evidence or nothing could be done. Etta Wheeler was tempted to apply to the Society for the Prevention of Cruelty to Animals but was reluctant to do what seemed to her incongruous. However, according to legend, when her niece suggested she go to Henry Bergh, since the child is a "little animal surely," Wheeler agreed. Within an hour she had presented her story of the wretched conditions under which Mary Ellen was living to Bergh, the animal society president. The legend continues with Bergh responding at once: "The child is an animal. If there is no justice for it as a human being, it shall at least have the right of the cur in the street . . . It shall not be abused."<sup>2</sup> Bergh consulted with the society's counsel, Elbridge

T. Gerry, and it was decided that the child, as a member of the animal kingdom, was entitled to protection under the laws against animal cruelty and the aegis of the animal protection society. Forty-eight hours later Mary Ellen and Mary Connolly were brought before Judge Abraham Lawrence of the New York Supreme Court, and Mary Connolly was sentenced to a prison term. Following these events, a new society to rescue children from abuse was promptly established, the New York Society for the Prevention of Cruelty to Children (NYSPCC), the first of its kind.

Two legendary aspects of the Mary Ellen story—that the child was rescued as a member of the animal kingdom, and that the chance discovery of her cruel treatment and her rescue led directly and singly to the beginning of a widespread child protection movement—have been accepted as fact even in contemporary social welfare history.<sup>3</sup> Although the neglect and abuse of Mary Ellen Wilson were real, and Etta Wheeler by all accounts almost single-handedly pursued intervention on the child's behalf, including a visit to Henry Bergh, the legend is incomplete and, in significant ways, clearly inaccurate. The rescue of Mary Ellen was not accomplished so readily. Nor was Henry Bergh immediately willing to play a major role in the legal action taken. He was even less inclined to recognize the child as a “human animal” and commit his animal society to official action on her behalf.

Henry Bergh was a descendant of a German family that came to America in 1700. He was the youngest child of Christian Bergh, an owner of a successful shipyard and a designer of schooners and brigs. Henry Bergh, “born as he was into the landed aristocracy of New York's hard-working tradesmen,” inherited a considerable fortune upon the death of his father, an amount more than adequate to cover the expensive tastes that he developed as a “dilettante youth,” as his biographer Zulma Steele characterized him.<sup>4</sup> His interests centered on dancing, music, art, and theater. He frequented New York's most fashionable drawing rooms. He was not known for any special liking for children but rather “a natural masculine irritation with noisy children.”<sup>5</sup> His philanthropic interests were centered in the New York Society for the Prevention of Cruelty to Animals, which he founded in 1866, and he was reluctant to be diverted from his crusade for animal protection.

Well before the Mary Ellen case, Bergh had been urged to involve his society in protecting abused children. He ignored or resisted these appeals on the basis that cruelty to children was entirely out of his sphere of influence. He was criticized for his resistance. Soon after the founding of the new animal society, the *New York Telegram* noted that “Our model Christian, President Bergh, appears to have a hard time of it between blustering sea captains, burly butchers, refractory dog fanciers and matter-of-fact police justices, in his humane efforts

to throw every person not as philanthropic as himself into jail. But there is a field in which we believe he might labor with more thanks for his pains. The children of New York are sadly in want of a champion . . . Here is a splendid opportunity for Bergh."<sup>6</sup> A Troy newspaper, the *Northern Budget*, noted in 1867 that it was not only lower animals that were subject to cruelty. "Man, the highest type of animal creation is also exposed to it."<sup>7</sup> A writer in the *Home Journal* suggested a way to improve the prevention-of-cruelty movement by extending its protection to "miserable children (animals, we might call them)," so evident in the streets of New York. "Let there be a lawful interference; in short, let us have a legally constituted and organized Society for the Prevention of Cruelty to Children."<sup>8</sup>

In June 1871, Bergh was approached by "a kind-hearted woman" to intervene in the case of a cruelly treated child who lived near the animal society offices with Mary Ann Larkin. Other neighbors also reported the abuse. In this instance Bergh allowed his society to investigate. Larkin, judged guilty of cruelty in the Court of Special Sessions, was given a suspended sentence. Newspaper accounts alerted the child's grandmother in Philadelphia, who claimed the child. Bergh's role in the investigation brought commendation in the *Brooklyn Eagle* for having "taken a very important step. He has recognized the human race as animals."<sup>9</sup> Bergh continued to receive appeals to intervene on behalf of children but maintained his reluctance to become involved on the basis that such cases of cruelty were "not in his particular line."<sup>10</sup>

For a constellation of reasons, the Mary Ellen case was more difficult for Bergh to ignore. His respected name in connection with humane endeavors and the association the news media had constructed between cruelty toward animals and cruelty toward children heightened public interest in the case and focused attention on the need for an agency charged to intervene on behalf of neglected and abused children. Consequently, Bergh instructed his society's counsel, Elbridge T. Gerry, to look into the matter and, if warranted, to file a petition to have the child removed from her present custodians and placed with persons who would treat her more kindly. At the same time, Bergh instructed Gerry to state to the court that it should be clearly understood that Bergh's action with respect to Mary Ellen was prompted by "his feelings and duty as a humane citizen; that in no sense had he acted in his official capacity as President of the Society for the Prevention of Cruelty to Animals."<sup>11</sup>

Evidence to supplement the testimony of Etta Wheeler was gathered by Bergh's agents and police officers, and a grand jury was convened. Indictment papers dated April 13, 1874, were filed by the District Attorney against Mary Connolly. (Francis Connolly did not figure in the indictment.) The charges cited specific instances of assault upon

“the female child called Mary Ellen” which varied only in intent and intensity. Assaults were alleged to have occurred on November 1, 5, and 7, 1873, and again on April 7, 1874, with an additional 12 counts of assault with scissors and intent to maim, do bodily harm, produce death, or feloniously and willfully to kill “the female child called Mary Ellen.”<sup>12</sup> Elbridge Gerry arranged for the issuance of a special warrant, *de homine replegiando* (an ancient writ of law available in certain conditions to secure the release of a person from unlawful detention), and Mary Ellen was brought before Judge Abraham Lawrence of the New York Supreme Court, where her testimony could be heard as well as that of other witnesses.<sup>13</sup>

Mary Ellen’s testimony in open court was later repeated before Judge Lawrence in his private room. It followed these lines: She believed her natural parents were dead and could not remember any time when she did not live with the Connollys; she called Mary Connolly “mamma.” She had scarcely any clothing—no shoes or stockings. She slept on a piece of old carpet on the floor in front of a window. She was not allowed to go outside or to play with other children. She could not remember any expressions of affection from Mrs. Connolly, only her whippings and beatings with a twisted whip—a rawhide—almost every day. The whip always left black-and-blue marks on her body. The marks on her forehead, apparent in court, were made by Mrs. Connolly when she had struck and cut Mary Ellen with scissors. (The scissors were produced in court.) She did not want “to go back to live with mamma because she beats me so.”<sup>14</sup>

Mary Connolly’s testimony on the following day focused on how she came to have the care and possession of Mary Ellen. She stated that she was formerly married to Thomas McCormack and had had three children by him, all of whom were dead. McCormack had professed to have three other illegitimate children, and Mary Connolly had gone with him to talk with George Kellock, the superintendent of the Outdoor Poor for the Department of Charities. There they “got out” the child Mary Ellen who McCormack claimed was his daughter. “I know this was one of my husband’s illegitimate children. He selected this one.”<sup>15</sup> Mary Connolly produced for the court a paper signed by authorities of the Commissioners of Charities and Correction that affirmed the indenture of Mary Ellen Wilson, aged 1 year and 6 months, to Thomas McCormack and his wife Mary in February 1866. After McCormack’s death, Mary McCormack had married Francis Connolly and had continued to take care of Mary Ellen. She stated that she had no way of knowing if Mary Ellen’s natural mother was living or if she had living relatives. “I never received a cent for supporting the child.”<sup>16</sup> Connolly acknowledged that she was supposed to have reported once each year to the commissioners as to the condition of the child but had done so only twice.

Other witnesses, including neighbors who lived in the same building or next door to Mary Connolly, recounted their knowledge of the long-standing cruel treatment of Mary Ellen. The matron at police headquarters, the investigating police officer, and an agent of Bergh's society who had taken the child into custody testified about the bruises and filth on her body when she was taken from Mary Connolly.<sup>17</sup>

George Kellock was called to the stand and affirmed that Mary Ellen Wilson was indeed indentured to the McCormacks in 1866. As to her parentage, records in his office showed only that Mary Ellen had been brought to his department in 1864 by a woman, Mary Score, who stated she had, until 3 weeks before, received 8 dollars a month for the child's support from "the parties leaving the child with me." Because payments had stopped, Mary Score brought the child to Kellock's office for his disposition.<sup>18</sup>

When questioned, Kellock stated that he had required a reference from the McCormacks when they took the child, and the one they had supplied from their "family physician"—a physician of "indeterminate status," as the *Times* recorded<sup>19</sup>—had been deemed satisfactory. Kellock had no other recollection of Mary Ellen and justified his scanty knowledge of her background and her entrance into public care by saying that 500 children had passed through his department in the past year.

The jury found Mary Connolly guilty of assault and battery, a lower charge than the initial indictment of "felonious assault." She was sentenced to 1 year of hard labor in the penitentiary—"a punishment to herself; but more as a warning to others."<sup>20</sup>

Final orders for Mary Ellen's care and custody were delayed until late December 1874, apparently because of Judge Lawrence's reluctance to make a final disposition on custody until efforts were made to learn about her natural parents or other relatives. Public interest in her parentage had been prompted by romantic journalistic speculation that alluded to "mysterious visits of parties to the home of the Connollys, which, taken together with the intelligent and rather refined appearance of the child, tends to the conclusion that she is the child of parents of some prominence in society, who, for some reason have abandoned her to her present undeserved fate."<sup>21</sup> Some 9 weeks later, Elbridge Gerry presented Judge Lawrence with a letter from a man in England who claimed to be Mary Ellen's grandfather. He wrote that he would "gladly take care of his daughter's child" and asked that she "be forwarded to him by steamer."<sup>22</sup> Judge Lawrence's responded that this new interest in the case "showed the propriety of being in no hurry," and he declined to make any disposition of the child at that time.<sup>23</sup> By the end of the year neither the alleged grandfather nor other relatives had materialized, and Judge Lawrence ordered that Mary



Ellen be given for care and custody to the Sheltering Arms, an institution for dependent children.<sup>24</sup>

## The Makings of a Movement

Cruelty to children had long been tolerated and suppressed. Why then did the Mary Ellen case serve to stimulate court intervention and a widespread philanthropic response? Clearly the answer is not the severity of the cruel treatment. Earlier in the same year, the *New York Times* reported that John Fox, 13, had died from a cruel beating by his father for “refusing to go after beer without the money to pay for it.”<sup>25</sup> A coroner’s inquest revealed that the child had died of pleuropneumonia caused by injuries inflicted by his father. No further attention was given to the case in the *Times*.<sup>26</sup>

In a study of political agenda setting for social problems, Barbara Nelson noted that “a single incident, however momentous, does not guarantee that concerned individuals will view the event as an example of a larger problem, and organize to solve it.”<sup>27</sup> Large social movements rarely, if ever, are traceable to accidental casual beginnings. The Mary Ellen case of private violence becoming “public property” is best explained by a fortuitous fusing of a constellation of varying and sometimes competing factors. Taken together, they stimulated public receptivity to a view of cruelty to children at the hands of parents and other caretakers as a social problem that must be addressed.

### *The Press*

The wide and often lurid publicity given the Mary Ellen case was one of these factors. In a study of incidents of child abuse that received wide media coverage, Nelson found that the press applied “an interesting kind of discretion.”<sup>28</sup> One characteristic consistently found in the cases she studied was that instances involving lower-class or lower-middle-class step-parents “who engaged in bizarre brutalization of a girl (where the girl managed to live through the ordeal)” were deemed “more newsworthy than instances when natural parents caused the death of a boy through severe abuse.”<sup>29</sup> In that sense, Mary Ellen clearly qualified as a candidate for persistent journalistic attention. In addition, Mary Ellen was an illegitimate child and beaten by someone other than her natural parents, a circumstance that muted the old precept of a parent’s right to determine the nature and severity of a child’s punishment. Interfering with cruel treatment of this particular child did not violate the privacy of family life; Mary Ellen did not live in a proper family. Public outrage about the abuse and compassion for the child was acceptable. Willingness to exclude cruelty to children from public consciousness was reduced.



An additional aspect of journalistic attention to Mary Ellen is speculative but worth mentioning. Etta Wheeler, the “sweet-faced missionary,” was married to a newspaper man—“happy augury” as Jacob Riis termed it.<sup>30</sup> Although no certain evidence has been cited to show that this association played a part in the widespread attention to the case, it is plausible to assume that Etta Wheeler understood the power of the press and that her husband was sensitive to her distress and concern about the child.

### *Cracks in the System*

Another factor in the formula that produced organized attention to child abuse was awakened public awareness of the plight of children within the public and private system of child saving. Public authority was adding to the neglect of children by failing to enforce existing legislation, set standards, and supervise child placement activities.<sup>31</sup> The Mary Ellen case revealed serious dereliction on the part of private charities and public relief, a disclosure that extended the significance of the case beyond that of a horrendous, single instance of child abuse.

With the first report of the Mary Ellen case, the *New York Times* began critical commentary of “the custodians of our public asylums who are not fastidious about the methods of disposing of their charges.”<sup>32</sup> It was alleged that the commissioners of charities “keep up a well-stocked child market, and anybody removed above the level of pauperism has only to go through the formality of signing an indenture to obtain the desired quantity of human flesh, one on which to work experiments, brutal or otherwise. Even the meaningless formula of reporting the condition of the child once a year may be dispensed with, as it was in this, the Mary Ellen case, without exciting either attention or inquiry.”<sup>33</sup> Aldermen and legislators were blamed as well for the practice of releasing children to all comers and for allowing petty sectarian jealousies to interfere with the proper supervision of placed children—criticism that appealed to reformers who favored the use of the more closely controlled environment of children’s institutions versus the expanding use of foster homes. Condemnation was also leveled against lack of regulation of the readily available tax-supported subsidies to agencies about whose procedures little was known. “Associations for charitable relief may and do start up any day, and, provided they have powerful friends at Albany, very quickly find themselves in clover. A necessary result of this has been the growth of a swarm of small, ill-organized societies.”<sup>34</sup> The extent to which they existed for the benefit of children in their care was said to be doubtful. The growing public subsidy system to finance child care of private agencies was deplored as a misdirection of funds and an influence that enhanced private charity

control over public responsibilities.<sup>35</sup> This public discussion of the entire system of child placing was a factor in moving the Mary Ellen case from a narrow preoccupation with one cruelly treated child to a more encompassing movement to protect children and women from a variety of harms and to establish their “rights.”

### *The Rise of Social Movements*

Public concern was maintained by other, more encompassing, challenges to social commitments. Values and strategies of other ongoing social movements that were part of a larger concern with equity and social justice played a central part in the rapid growth of the anticruelty-to-children movement. More important than the Mary Ellen case itself in explaining why cruelty to children became a social issue in the 1870s was its connection with other reform movements of the era.

The powerful women’s rights movement of the 1870s was an overarching influence on a number of social justice reform movements. In addition to women’s suffrage, women advocates were usually involved in several causes. Among them was the reform of child care and child nurture, which emphasized the ideal of “protected childhood,” fostered cultural rejection of child abuse, and prompted campaigns against punitive corporal punishment. Another effort was the social purity campaign, which attempted to do away with prostitution and protect young girls and single working women against sexual exploitation. The temperance movement, which identified alcohol as the cause of family breakdown and cruelty to children and women, was another.

In a study of the politics and history of family violence, Linda Gordon observed that the child protection movement closely integrated gender, class, religious, and ethnic goals, rather than reflecting the interests of any single homogenous dominant group.<sup>36</sup> Among an array of influences, she credited the women’s rights movement of the 1870s with being “most influential in confronting, publicizing, and demanding action against family violence,” which was first acknowledged as cruelty to children and later as violence toward women and other family members.<sup>37</sup>

Women who became part of the child protection movement accepted the late nineteenth-century interpretation of domesticity. They saw women and children’s interests as closely connected and acted for both women and children’s rights. Harm to one was harm to the other. “In this era after all,” Gordon observed, “women’s political claim to respect was largely based on an ideology that nearly sacralized motherhood.”<sup>38</sup> The anticruelty-to-children campaign attracted not only those who advocated “radical” actions—suffrage, changes in marriage laws, “voluntary motherhood” (a euphemism for access to reliable birth con-

trol)—but also those who were more conservative, who kept some distance from extreme breaks with tradition, yet who remained allied with female leadership in moral reform.<sup>39</sup>

The issues raised by the women's rights movement and the philanthropic energy that women turned to the problem of child protection resulted in significant political leadership. They were committed to social responsibility for the welfare of children and were effective advocates for legitimizing charitable and professional interventions into family violence and other domestic problems. These dedicated and enlightened women promoted a critique of the conventional family and opened its inner power relations to scrutiny.<sup>40</sup>

### *Darwinian Thought*

Another significant influence on the movement to prevent cruelty to children was a perceived link with the existing Societies for the Prevention of Cruelty to Animals. Gordon has suggested that the two movements were joined to some extent by Darwinian thought, which lessened the distance between humans and animals.<sup>41</sup> Darwin's work almost surely sharpened the sense of physical and emotional kinship with animals and may even have led some people to think of children as only a step up from animals on Darwin's evolutionary scale. An affinity between animals and children is ancient, however, as illustrated in Aesop's Fables—animal stories told to illustrate human faults and virtues. In the nineteenth century in both England and America, children's books whose characters were animals with human traits were very popular because of their moral teachings. The stories placed animals in challenging situations, and by use of a natural wisdom of their own, they were able to reach solutions that rejected evils such as cunning, thievery, and greediness, in favor of the virtues of compassion, loyalty, bravery, and honesty.

Even before the Mary Ellen story became public, the press had alluded to children as "human animals" who were as worthy of protection from cruelty as were horses, cattle, and dogs. The humane literature of the time also added to this perception by referring to children as "little animals" and emphasizing the common defenselessness of animals and children and their shared right to protection. The American Humane Association double seal depicted on one side the protection of animals and on the other the protection of children.<sup>42</sup>

Bolstered by what James Turner termed "the Victorian revulsion from suffering," new sensibilities about the ability of animals to feel pain provided a rationale for the work in England of the Royal Society for the Prevention of Cruelty to Animals. Advances in science and new uses of anesthesia had made it possible to alleviate much of the physical pain to which people had long been subject. Increased public

realization that animals could suffer from acute pain generated empathy and a new basis for a claim that animals too had “rights” to consideration and kindness.<sup>43</sup>

Advocates for the child protection movement were aware of this new cultural rejection of unnecessary suffering and used it to emphasize the injustice in allowing children to continue to bear unwarranted pain. They strengthened their argument by claiming that children had even greater vulnerability to pain than animals. A letter to Henry Bergh in the *New York Times* from “A Lady Who Is Deeply Interested” is illustrative. She exhorted Bergh not to let his good work with animals end there. “Can you not prevent the cruelty used toward the little children in our streets . . . [who are] as powerless to help themselves as the dumb brutes and yet with a far greater capacity for suffering?” She implored Bergh not to forget “the creatures whom God made in his own image, and to whom he has given a soul that may be saved by saving a body. These dumb creatures will not meet you in the life to come, but if you rescue but one human being, angels will envy your reward.”<sup>44</sup>

The formation of the New York Society for the Prevention of Cruelty to Children in 1874 triggered a rapid growth of other child cruelty societies. Some were established societies for the prevention of cruelty to animals to which the function of preventing cruelty to children was simply added to the title—Societies for the Prevention of Cruelty to Animals and Children—another reinforcement of the ideas of commonalities between animals and children. One agency justified such joined functions thus: “The protection of children and the protection of animals are combined because the principle involved, i.e., their helplessness, is the same; because all life is the same, differing only in degree of development and expression; and because each profits by association with the other.”<sup>45</sup> The claim to mutual benefit was regarded as problematic by some, but the resulting dissension did not reflect rejection of the accepted link between animals and children or of the fundamental similarities of protective work for children and for animals. Objections to “double agencies” were more practical: fear on the part of entrenched allies of the animal movement that adding children to their charge would shift time and money away from their primary commitment to animals.<sup>46</sup> Some other humane leaders, less concerned about conflicting interests, saw the association of the two movements as an opportunity to harness some of the popular support for the animal anticruelty movement and direct it toward the new movement to protect children.

Whatever the effects of a publicly perceived link between animals and children, the animal societies played a major role in the “discovery” of cruelty to children and greatly influenced the child protection movement that followed. The animal organizations offered a tested model

of a carefully circumscribed organizational purpose, policy, and strategies of intervention into instances of cruel treatment. The animal movement supplied another essential ingredient—a proved and impassioned leader, Elbridge T. Gerry, who had emerged from the Mary Ellen case as the recognized authority to lead and expand the child rescue movement.

### *The Rise of Judicial Patriarchy*

The new wave of support for the prevention of cruelty to children offered Gerry a welcomed opportunity, one for which he was eminently qualified: to develop and apply law that would further expand judicial power in the area of family life. Nineteenth-century expansion of family law, reinforced by popular opposition to women's rights, brought an assumption of authority by the judiciary, identified by Michael Grossberg as the rise of a "judicial patriarchy." By late nineteenth century, he claims, "a distinctive American law of custody and guardianship had come to rest on the twin pillars of gender beliefs and a judicial patriarchy."<sup>47</sup> Women's demands for change in their unequal status within the family were powerful influences on the state to step into the arena of child and family. Women had formerly been subjected to the disabilities and inequalities of being denied the right to own and manage their own property, escape a failed marriage, or hold guardianship or custody rights to their children. Improvement in marriage property law and divorce law was a first target for reform. But because statutes empowering women reallocated power within marriage, they were perceived by many as a serious threat to the patriarchal organization of the family. Claims by women for an equal role within the family prompted fear by many who forecast dangerous changes in family life and domestic governance.

Instead of granting powers of guardianship and custody directly and independently to mothers, the courts shifted the locus of patriarchy by usurping the role formerly held by fathers, and created a system of judicial patriarchy that in the name of reform would still maintain male supremacy in decisions about parental rights and definitions of acceptable parental care.

A new standard of child welfare arose, one that considered the child's best interests by determining fault and applying gender-based social values. Judicial patriarchy, Grossberg holds, is the most accurate label for the child placement powers that emerged in the nineteenth century.<sup>48</sup> By extending the standard of parental fitness, the courts fostered an adversarial relationship between families and courts. In doing so, the state encouraged reformers who were concerned with protection of children from unfit parents. Although the reformers in the child rescue movement (and those of other charitable organizations)

did not completely agree on the proper role for government in child welfare, they scarcely questioned the right of the court to remove children from unsuitable homes.<sup>49</sup>

*Elbridge T. Gerry and the New York Society for the Prevention of Cruelty to Children*

Gerry was already established as a distinguished lawyer with broad legal knowledge and an extensive practice in both civil and criminal law. As counsel to the New York Society for the Prevention of Cruelty to Animals, Gerry had prepared and introduced bills into the state legislature, and by virtue of his legal knowledge and well-prepared arguments, he had significantly strengthened the legal position of animal protection.<sup>50</sup>

Gerry had graduated from Columbia University before beginning the study of law where he became an expert in Roman law. He was a man of wealth and conservative ideas. He had a valuable private law library and a taste for beautiful objects—paintings, sculpture, and quaint bits of antiquity—well displayed in a private gallery in his home. He was a member of many of the select clubs of New York.<sup>51</sup>

In addition to his respected legal reputation, Gerry was frequently cited as having come from “sterling stock,” or “fighting stock.” He was the grandson of Elbridge T. Gerry, the rugged colonial patriot, statesman, member of the Continental Congress, signer of the Declaration of Independence, and vice-president of the United States under James Madison.<sup>52</sup> Given his background, wealth, and conservative beliefs, Gerry appealed to a section of the public that, under the name of justice, wanted new applications of law in family matters, particularly in an application of social control of immigrant family life. Gerry saw a way to pursue that goal within the popular rhetoric of child rights.

The idea of “child rights” had emerged in an 1852 article of a New England periodical under the title “The Rights of Children.”<sup>53</sup> However, the author proved to be more concerned about wrongs done to children than about their rights. Under the aegis of “child rights,” he sought attention to the need to “protect” children from the “tyranny” of parents rather than to give them a legal identity independent of their parents.

Somewhat later, Kate Douglas Wiggin authored a book entitled *Children's Rights* in which she introduced the idea of child rights as opposed to privileges. She conceded, however, that it was a “delicate matter” to decide just when and where the rights of the parent infringed upon the child; no standard had been set. She resolved this dilemma by proclaiming an “inalienable right to childhood,” and then turned her remaining discourse into a child nurture book on children’s play, playthings, stories they read, and the value of kindergartens.<sup>54</sup>



Given his legal background, Gerry was most surely aware of the dichotomy between child rights, which would give children some degree of autonomy from parents and a legal identity that carried a claim to certain civil or political liberties, and child protection, which meant a claim to special protections under the law, provided at the behest of the child reformers.<sup>55</sup> He knew too that the public at that period of time generally would not make a clear distinction between “rights” and “protection,” and he was willing to use the language of rights to gain support for a protective society for children modeled after the animal protection society with which he was involved. Repeatedly thereafter he couched the intent of the new organization in terms of rights for children by emphasizing the axiom that “at the present day in this country, children have *some* rights which even parents are bound to respect.”<sup>56</sup>

Gerry was not only an accomplished lawyer; he was a practical man as well. He was aware that despite the present clamor for the protection of children from cruel treatment, vigorous opposition would emerge to a proposal for an incorporated organization with authority to intervene into the affairs of the family with respect to the quality of parental care. He needed a pilot sponsor, someone above reproach, someone quietly discreet but persuasive in handling objections to the idea of enforceable limits on parental power. He found that man in John D. Wright.

Wright's father had been a prominent shipping merchant. John Wright, in turn, became an importer of and dealer in leather. Those circumstances enabled him to amass, conservatively stated, “a comfortable fortune.” He was a highly respected member of the Society of Friends and a benefactor of many charitable enterprises. It was known that he was fond of children and that he frequently visited the Home for the Friendless, where the children who lived there responded eagerly to his attention.<sup>57</sup>

Wright had been only one of the men of influence whom Gerry had approached in an effort to garner support for a new Society for the Prevention of Cruelty to Children (SPCC). Others had voiced interest in the idea and offered money, but only Wright responded with willingness to assume leadership in the formation of such a society. By then Wright was almost 74 years old, but he announced to his family that he believed it to be “his religious duty to found a society for the protection of the little ones.”<sup>58</sup> He sought money for the new organization from wealthy friends, and when difficulties developed in obtaining a certificate of incorporation, Wright went to Albany and remained there for 10 weeks, talking and making friends with legislators. Heavy opposition to the proposal was directed at the legislators from officers of other charitable organizations who feared loss in their own appropriations and, in some cases, interference with the religion of



Roman Catholic children. As expected, opposition came as well from those who saw the proposed society as an unwarranted interference into the privacy of the traditional family.<sup>59</sup>

A meeting to organize the new society was held in December 1874, with John D. Wright presiding. The charter of incorporation was issued on April 21, 1875. Wright became the first president of the new society, and Elbridge Gerry its counsel.<sup>60</sup> When Wright died in 1879, Gerry was unanimously elected president. Even earlier, however, Gerry's influence on the goals and strategies of the new society had been felt. His "absorbing zeal, his intelligence, fixed purpose, and indomitable will" had set the course that would develop the new organization "into an engine of great power."<sup>61</sup> So strong was Gerry's individuality that the term "the Gerry Society" quickly supplanted the organization's corporate title in the public mind.

Those who filled positions as officers and members of the board of managers of the newly formed agency were all men of privilege, property, wealth, and influence. They were manufacturers, merchants, bankers, owners of railroads and mines, lawyers, and mostly Protestant and Republican. They tended to be supporting members of charitable or other philanthropic societies. Some of them had been affiliated in various ways with Henry Bergh and his Society for the Prevention of Cruelty to Animals. Most were willing to lend their reputation and financial backing, but preferred and expected to leave most of the policy-making and direction to Gerry and his sponsor, John D. Wright.<sup>62</sup>

From the first stirrings of the anti-cruelty-to-children movement, the founders of the NYSPCC were aware of the fears of the public. In a study of domestic tyranny, Elizabeth Pleck observed that "the presence on the NYSPCC's board of directors of some of the richest men in the nation reassured the public and state officials about the conservative nature of anticruelty work."<sup>63</sup> In a similar vein, Henry Bergh stated at the organizing public meeting of the new society that although he was anxious to "protect children from undue severity," he himself was "in favor of a good wholesome flogging, which he often found most efficacious," a remark that may well have expressed his own feelings but was almost certainly calculated to strike a note of empathy and confidence among the public who feared a lessening of parental power to discipline their children.<sup>64</sup>

Absent in any recognized and significant role in the new path-breaking society were women. Three-fourths of the large attendance at the organizing meeting of the Society for the Prevention of Cruelty to Children were "ladies," and "all evinced the deepest interest in the proceedings." John Wright had "hoped that all of those present would . . . become co-workers."<sup>65</sup> Nevertheless, no women were brought into the formal power structure of the organization. Not until 1921 were women added to the board of directors of the NYSPCC, and then

only after all but one of seven “auxiliary” women had resigned because they were “displeased” that certain duties—authority to purchase supplies and other essentials for the children at the society’s home at Inwood—had been taken away from them. After that display of independence by women, more than 3 months elapsed before the auxiliary members were asked “to remain,” and for the first time in the history of the NYSPCC, two women were permitted to sit as members of the board of directors—Mrs. William K. Vanderbilt, Jr., and Mrs. Mortimer L. Schiff. Mrs. Robert L. Gerry had been invited to serve as well but did not attend the meeting.<sup>66</sup>

From the beginning, gender stereotypes were deeply embedded in the thinking and policies of the NYSPCC. More than a few times in speaking about the work of his society, Gerry expressed a philosophy consistent with his statement to the members of the American Humane Society: “Take the case of the child who is born a boy. It is the interest of the people to see that that boy is properly reared. His physical culture must be attended to. We must see he is properly protected in health, that as he grows older he must be sent to school and his intellect trained so that when he comes to exercise the electoral franchise he shall be intellectually capable. So in regard to a girl. She should be reared, surrounded with the elements of religion, industry, honesty and purity, because she is to be, as the state contemplates—the mother of some one or more of the future people of the state. When you look at the case in this way you will see that it is the highest interest of the people of the state not merely to protect, but to perpetuate the protection of the elements out of which the future sovereign is to be born.”<sup>67</sup>

In view of the expanded number of philanthropic organizations for children in the late nineteenth century, the founders of the NYSPCC were obliged to justify the need for yet another. They acknowledged that in New York City and in various parts of the state there already existed many excellent societies and institutions engaged in the “grand and truly noble work” of caring for little children. However, any one of these diverse charitable organizations could assume the care and control of children only when an individual child had been legally placed in its custody. The problem, the NYSPCC founders said, was that finding, rescuing, and bringing cruelly treated children before the proper legal tribunal seemed to be “nobody’s business.” As a result, existing laws for the protection of children from ill treatment by their parents or other caretakers went unenforced. Thus the SPCC was founded for the specific purpose, as indicated in its corporate title, to prevent cruelty to children. To accomplish this purpose, the society proposed “to seek out and to rescue from the dens and slums of the city those little unfortunates whose childish lives are rendered miserable by the constant abuse and cruelties practiced on them by the human brutes who happen to possess the custody or control of them.”<sup>68</sup>

Under the influence of Elbridge Gerry, the founders made a further distinction: the NYSPCC was “not created for the purpose of educating or reforming children, or seeing that they were transported into other homes,”<sup>69</sup> the latter a reference to the controversial program of the New York Children’s Aid Society in which Charles Loring Brace gathered up and sent groups of dependent and neglected children into the rural Midwest where they were given homes through an informal “indenture.” The initial purpose was plainly stated and circumscribed: to find cruelly treated children, rescue them, and under the law secure prompt conviction and punishment of every “cruelist.” These interventions, the NYSPCC founders stated, were vital because “children, hardened by brutality and cruelty, grow up to be men and women scarcely less hardened than their tyrants. The men swell the ranks of the ‘dangerous class’ which imperil the public peace and security, and the women are lost—body and soul—often before they are women in age and maturity.”<sup>70</sup> The aspect of moral reform was clearly present. Not only were acts of cruelty to children inhumane and a challenge to the ideal of family, but they also tended to create an “atmosphere of impurity” and lower the general moral tone of the community.

Gerry’s turgid rhetoric with respect to the purpose of the society appeared early in the society’s annual reports and other public statements and carried a strong commitment to the function of law enforcement. As he stated frequently with only slight variation, the SPCC was

simply created as a hand affixed to the arm of the law, by which the body politic reaches out and enforces the law. The arm of the law seizes the child when it is in an atmosphere of impurity, or in the care of those who are not fit to be entrusted with it, wrenches the child out of these surroundings, brings it to the court, and submits it to the decision of the court—unless, on the other hand, it reaches out that arm of the law to the cruelist, seizes him within its grasp, brings him also to the criminal court and insures his prosecution and punishment. These are the functions of our societies.<sup>71</sup>

The strategies of the NYSPCC as stated at its founding and in its early years clearly called for a coercive application of social control: rescue the child, place the child in a controlled environment, and punish the cruelist as a convincing deterrent to others who would cruelly treat and shamefully neglect children.

The stated purpose and philosophy of the NYSPCC gained further significance in its first 2 years as seven other societies were founded and others were forming. All adopted the emblem of the NYSPCC, thus “recognizing ours” as the parent society, as Gerry termed it.<sup>72</sup> By 1898 more than 20 societies existed in the United States, and the model had been transported abroad as well.<sup>73</sup> The majority of these new societies rescued animals and children. Roswell C. McCrea identified

55 societies across the country in 1908 that were devoted exclusively to protecting children from cruel treatment.<sup>74</sup>

## Conclusion

It would be misleading to conclude that the single case of maltreatment of Mary Ellen in the early 1870s was the dominant influence in cruelty to children becoming a challenging social issue. Other equally or more horrendous acts of child abuse had been ignored by the public and the press. In the instance of Mary Ellen, the circumstances of her birth and foster parenting allowed widespread attention by the press without challenging the closely held prerogative of parents to determine the nature and severity of their children's punishment. However, interest in the Mary Ellen case might have dwindled had it not been for its intersection with other varying and sometimes competing factors.

One such force was the publicly perceived link between animals and children, fostered by the widespread discussion in the press. The animal protection movement was an established function with trusted leaders, and the connection was acceptable to many. Press reports of serious dereliction on the part of private charities and public relief programs also added to a readiness to entrust investigation of violence toward children to a new society, one without ties to the established child placement system.

Public concerns about cruelty to children was heightened by the powerful women's rights movement of the 1870s and its attention to a variety of social justice reforms—woman suffrage, reform of the patriarchal family system by granting equality within the structure of the family, “protected childhood,” banishment of punitive corporal punishment, prevention of sexual exploitation of young girls and single women, the temperance movement, and action against family violence.

However, women faced powerful obstacles in their drive for equality within the family in their attempts to restructure public and private charities. One such obstacle was the rise of judicial patriarchy, which significantly expanded judicial power in family life. Another was Elbridge Gerry's unchallenged ability and drive to establish, under the banner of “child rights,” a powerful organization for coercive social control of poor, immigrant families, those headed largely by women.

Although Gerry claimed a limited function for the NYSPCC—investigating cases of alleged cruelty to children and presenting facts to the court—ultimately the society came to control the entire disposition of all classes of children coming before the courts in New York. The Society for the Prevention of Cruelty to Children agents were given police powers. They investigated all court cases of so-called cruelly treated children and advised the magistrates as to what institutions children should be committed. Often the NYSPCC subsumed the power

of institution managers to discharge children to parents or to indenture. It was credited as being the major influence in perpetuating the system of public financial subsidies to private organizations.<sup>75</sup>

Gerry's coercive domination of the placement of children away from their parents, and his refusal to collaborate with the existing children's agencies, forestalled well into the twentieth century the development of a rational system of child protection within a larger system of social services.

## Notes

1. The groundwork for a developing legend was laid by the very considerable newspaper publicity given the Mary Ellen case. It was given further impetus when Etta Angell Wheeler appeared before the annual meeting of the American Humane Association (AHA) in 1913 to read her account of the discovery and rescue of Mary Ellen and the part played by Henry Bergh. Her paper, entitled "The Story of Mary Ellen Which Started the Child Saving Crusade throughout the World," was included in the *Proceedings of the 37th American Humane Association Annual Meeting, Oct. 13–16, 1913, Rochester, N.Y.* (Albany, N.Y.: AHA, 1913) and then reprinted and widely distributed as AHA pamphlet no. 280. Further enthusiasm for the story was generated at the 1913 conference by the presence of Mary Ellen Wilson herself, by then Mrs. Louis Schutt (wife of an upstate farmer). The popular account of her abuse and rescue was renewed again in the *New York Times* (December 5, 1920, p. 16), with much of Etta Wheeler's early story repeated. Upon Mrs. Wheeler's death, the *Times* again reviewed the story (December 12, 1921, p. 15) and gave further details of Mary Ellen Wilson's happy and successful adult life. The endurance of the value assigned to the legend is reflected in information given me in May 1977 by Hortense Landau, executive director of the New York Society for the Prevention of Cruelty to Children (NYSPCC): the tattered stained clothing that Mary Ellen wore when she was rescued more than a century earlier and the scissors that Mary Connolly had used to strike the child had been preserved by the society. A staff member had recently come across these articles while clearing out a seldom-used office cupboard.

2. Sidney H. Coleman, *Humane Society Leaders in America* (Albany, N.Y.: American Humane Association, 1924), p. 74.

3. To trace the continuity of the legend, see Wheeler, "The Story of Mary Ellen" (n. 1 above), and reprinted in the golden anniversary issue as "Child Protection Begins," *National Humane Review* (January–February 1962), pp. 16–17; George Henry Payne, *The Child in Human Progress* (New York: G. P. Putnam's Sons, 1916), pp. 335, 337; Coleman (n. 2 above), pp. 71–75; Emma Octavia Lundberg, *Unto the Least of These* (New York: Appleton-Century Crofts, 1947), p. 103; Anne Allen and Arthur Morton, *This is Your Child* (London: Routledge & Kegan Paul, 1961), pp. 15–16; Vincent J. Fontana, *The Maltreated Child* (Springfield, Ill.: Charles C. Thomas, 1964), p. 8; Alfred Kadushin, *Child Welfare Services* (New York: Macmillan, 1967), p. 206, carried into 4th ed. (1988); S. X. Radbill, "A History of Child Abuse and Infanticide," in *The Battered Child*, ed. Ray E. Helfer and C. Henry Kemp (Chicago: University of Chicago Press, 1968), pp. 3–17; Robert M. Mulford, "Protective Services for Children," in *Encyclopedia of Social Work*, 16th ed. (New York: National Association of Social Workers, 1971), 2:1007; Lela B. Costin, *Child Welfare, Policies and Practice*, 2d ed. (New York: McGraw-Hill, 1979), p. 444, carried into 3d ed. (1983); Mary Hannemann Lystad, "Violence at Home: A Review of the Literature," in *Child Abuse and Violence*, ed. David G. Gil (New York: AMS Press, 1979), pp. 393–94.

4. Zulma Steele, *Angel in Top Hat* (New York: Harper & Brothers, 1942), pp. 12–21. See also Roswell C. McCrea, *The Humane Movement: A Descriptive Survey* (New York: Columbia University Press, 1910), app. 1, "Biography of Henry Bergh," pp. 147–56.

5. Steele (n. 4 above), pp. 191–92.
6. Ibid., p. 193.
7. Ibid.
8. Ibid.
9. Ibid.
10. Ibid.
11. *New York Times* (April 10, 1874), p. 4. Reprinted in Robert H. Bremner, ed., *Children and Youth in America: A Documentary History, 1600–1865* (Cambridge, Mass.: Harvard University Press, 1970), 2:185–87.
12. Copies of indictment papers, case nos. 1261 and 1262, were obtained from Kenneth R. Cobb, assistant director, Municipal Archives, Department of Records and Information Services, New York. No account of the actual courtroom proceedings was found in the archives, but copies of newspaper accounts of the trial had been filed with the indictment papers.
13. Payne (n. 3 above), p. 336; Mason P. Thomas, Jr., “Child Care and Neglect: Part 1. Historical Origins, Legal Matrix and Social Perspectives,” *North Carolina Law Review* 50, no. 2 (February 1972): 308 and n. 59.
14. *New York Times* (April 10, 1874), p. 4; Bremner (n. 11 above), p. 186.
15. *New York Times* (April 11, 1874), p. 6; Bremner (n. 11 above), pp. 187–88.
16. Ibid.
17. Ibid.
18. *New York Times* (April 14, 1874), p. 14; Bremner (n. 11 above), p. 188.
19. Ibid.
20. *New York Times* (April 22, 1874), p. 8.
21. *New York Times* (April 10, 1874), p. 4; Bremner (n. 11 above), p. 186.
22. Ibid.
23. *New York Times* (June 2, 1874), p. 8.
24. *New York Times* (December 27, 1874), p. 12; Bremner (n. 11 above), p. 189. The year given in Bremner is 1875, a printing error.
25. Barbara J. Nelson, *Making an Issue of Child Abuse: Political Agenda Setting* (Chicago: University of Chicago Press, 1984), p. 67.
26. Ibid.
27. Ibid., p. 5.
28. Ibid., p. 67.
29. Ibid.
30. Coleman (n. 2 above), p. 73. Coleman incorporates into his text a lengthy portion of a magazine article (source not included) written by Jacob Riis.
31. Thomas (n. 13 above), p. 308.
32. *New York Times* (April 11, 1874), p. 6.
33. Ibid.
34. *New York Times* (April 30, 1874), p. 4.
35. Ibid.
36. Linda Gordon, *Heroes of Their Own Lives: The Politics and History of Family Violence* (New York: Viking, 1988).
37. Ibid., p. 4.
38. Ibid., p. 57.
39. Ibid., p. 33.
40. Ibid., p. 80.
41. Ibid., p. 34.
42. This view of the child as closely related to the animal was repeated, sometimes openly, sometimes in muted tones, but persistently in annual reports of the American Humane Association and other early humane literature. The description of the AHA seal is found in Coleman (n. 2 above), p. 257.
43. James Turner, *Reckoning with the Beast: Animals, Pain, and Humanity in the Victorian Mind* (Baltimore: Johns Hopkins University Press, 1980).
44. *New York Times* (January 27, 1872), p. 3.
45. McCrea (n. 4 above), p. 137.
46. *Doings of the Second Annual Meeting of the International Humane Society, to be known hereafter as The American Humane Association* (Boston: Albert J. Wright, 1878), pp. 13–14.



47. Michael Grossberg, "Who Gets the Child? Custody, Guardianship, and the Rise of a Judicial Patriarchy in Nineteenth-Century America," *Feminist Studies* 9, no. 2 (Summer 1983): 235–60.
48. Michael Grossberg, *Governing the Hearth, Law and the Family in Nineteenth Century America* (Chapel Hill: University of North Carolina Press, 1985).
49. Ibid.
50. Coleman (n. 2 above), pp. 65–88.
51. *New York Times* (February 20, 1898), illustrated weekly magazine, p. 2; Coleman (n. 2 above).
52. Ibid.
53. Paul Siogvolk, "The Rights of Children," *Knickerbocker* 39 (June 1852): 489–90.
54. Kate Douglas Wiggin, *Children's Rights: A Book of Nursery Logic* (Boston: Houghton Mifflin, 1892).
55. Catherine J. Ross, "Of Children and Liberty: A Historian's View," *American Journal of Orthopsychiatry* 52, no. 3 (July 1982): 470–80.
56. Elbridge T. Gerry, "The Relations of the Society for the Prevention of Cruelty to Child-Saving Work," *Proceedings of the National Conference of Charities and Correction* (1882) (Fort Worth, Ind.: Fort Worth Printing Co., 1913), pp. 129–30.
57. "John D. Wright Dead," *New York Times* (August 22, 1879), p. 5.
58. Ibid.
59. Ibid.
60. *New York Times* (December 29, 1874), p. 2; NYSPCC, *First Annual Report* (New York: NYSPCC, 1876), pp. 8–24, for law incorporating the society, the certificate of incorporation, and the bylaws of the society.
61. *New York Times* (February 20, 1898), illustrated weekly magazine, p. 2.
62. Some of the directors may have taken interest from time to time in particular cases. In two instances in the society's second year, Charles Haight followed up on complaints. He witnessed an acrobatic circus performance of a child, confronted the manager, and the performance was stopped. Haight also visited Fulton Market, where an informant had complained of the cruel manner in which a boy was required to turn a peanut roaster and compelled to inhale charcoal fumes as he stood continually in a bent position. (NYSPCC, *Second Annual Report* [New York: NYSPCC, 1877], pp. 5, 33, 39).
63. Elizabeth Pleck, *Domestic Tyranny: The Making of Social Policy against Family Violence from Colonial Times to the Present* (New York: Oxford University Press, 1987), p. 73.
64. *New York Times* (December 29, 1874), p. 2.
65. Ibid.
66. *New York Times* (December 15, 1920), p. 8, (April 13, 1921) p. 9. See also NYSPCC, *Forty-seventh Annual Report* (New York: NYSPCC, 1921), p. 14.
67. American Humane Society, *Report of the Proceedings of the 31st Annual Convention, American Humane Association* (Albany, N.Y.: AHA, October 12–14, 1907), p. 51.
68. NYSPCC, *First Annual Report* (n. 60 above), pp. 5–7.
69. Elbridge T. Gerry, *Thirty-first Annual Meeting of the American Humane Association* (Albany, N.Y.: AHA, 1907), p. 51.
70. NYSPCC, *First Annual Report* (n. 60 above), pp. 6–7; William C. Morey, *The Government of New York* (New York: Macmillan, 1902), pp. 151–52.
71. Gerry, *Thirty-first Annual Meeting* (n. 69 above).
72. NYSPCC, *Second Annual Report* (n. 62 above), p. 27.
73. *New York Times* (February 20, 1898), illustrated weekly magazine, p. 2.
74. McCrea (n. 4 above), p. 15. McCrea called attention to the difficulty of getting accurate information. Few of the societies were systematic about gathering statistics.
75. Homer Folks, *The Care of Destitute, Neglected, and Delinquent Children* (New York: Macmillan, 1902), pp. 173–77.